

25STCV20914 25STCV20914

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Case Number: 25STCV20914 Hearing Date: August 7, 2026 Dept: 406

ANDREA MORA ALCAUTER,

Plaintiff,

v.

CHUGH, LLP, et al.,

Defendants.

Case No.: 25STCV20914

Hearing Date: August 7, 2026

[TENTATIVE]

order RE:

cross-defendant andrea mora alcauter's

motions to compel further responses (CRS# 2727, 9772, 7887, 2267)

BACKGROUND

On July 15, 2025, Plaintiff Andrea

Mora Alcauter filed this employment discrimination action against Chugh LLP and

Navneet Chugh. Plaintiff alleges that she was harassed and discriminated

against based on her national origin and disability. Plaintiff alleges that

Defendants retaliated against her for reporting this misconduct and for

reporting an immigration fraud scheme occurring within the company. Plaintiff

alleges that she was compelled to resign due to the intolerable conditions.

On November 24, 2025, Chugh LLP and Navneet Chugh filed a cross-complaint against Alcauter. The cross-complaint alleges that Alcauter failed to perform her duties while working at Chugh LLP, fostered a negative workplace, misused company resources, and circulated a defamatory email upon her departure.

On June 26, 2026, Alcauter filed the instant four motions to compel Chugh LLP's further responses to discovery regarding the cross-complaint. Chugh LLP filed oppositions on July 27, 2026. Plaintiff filed replies on July 31, 2026.

LEGAL STANDARD

Upon receiving responses to its discovery requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a), 2033.290(a).)

A party "is entitled to demand answers to its interrogatories, as a matter of right . . . [and] the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory." (Williams v. Sup. Ct. (2017) 3 Cal.5th 531, 541.) By contrast, the party seeking production of documents bears the initial burden of showing good cause through a fact-specific showing of relevance. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.) Once this showing is made, the burden shifts to the responding party to justify any objections. (Ibid.)

MEET AND CONFER

A motion to compel further must be accompanied by a meet and confer declaration demonstrating an attempt to resolve the matter informally. (Code Civ. Proc., §§ 2030.300(b)(1), 2031.310(b), 2033.290(b).) The Court finds that Cross-Defendant has satisfied the meet and confer requirement. (See Silva-Guzman Decl.)

DISCUSSION

I.

Requests for Production (CRS# 2267)

a. Statements of
Compliance/Noncompliance

A statement of compliance or inability to
comply must be made as follows:

A statement that
the party to whom a demand for inspection, copying, testing, or sampling has
been directed will comply with the particular demand shall state that the
production, inspection, copying, testing, or sampling, and related activity
demanded, will be allowed either in whole or in part, and that all documents or
things in the demanded category that are in the possession, custody, or control
of that party and to which no objection is being made will be included in the
production.

(Code
Civ. Proc., § 2031.220.)

A representation
of inability to comply with the particular demand for inspection, copying,
testing, or sampling shall affirm that a diligent search and a reasonable
inquiry has been made in an effort to comply with that demand. This statement
shall also specify whether the inability to comply is because the particular
item or category has never existed, has been destroyed, has been lost,
misplaced, or stolen, or has never been, or is no longer, in the possession,
custody, or control of the responding party. The statement shall set forth the
name and address of any natural person or organization known or believed by
that party to have possession, custody, or control of that item or category of
item.

(Code
Civ. Proc., § 2031.230.)

Chugh LLP is entitled to object and
then provide a substantive response. However, Chugh LLP's responses do not
contain proper statements of compliance or inability to comply. Where Chugh LLP
intended to produce documents, it simply stated, "responsive documents include"

and then listed bates numbers. This fails to specify whether Chugh LLP is complying in whole or in part, and fails to confirm that all documents not subject to an objection will be produced. Where Chugh LLP was unable to produce documents, it simply stated, “no such documents have been identified.” This fails to confirm that a reasonable inquiry was made, explain the reason for noncompliance (lost, misplaced, destroyed, etc.), or identify the individual or organization believed to be in possession.

The Court agrees that Alcauter’s skepticism as to the completeness of the production is not a reason to compel a further response. However, Chugh LLP must still provide written responses that comply with the Code, as set forth above. Additionally, “equally available” is not a valid reason for withholding responsive documents in Chugh LLP’s possession. Alcauter is entitled to discover which documents are in Chugh LLP’s possession. Chugh LLP has not demonstrated that production would be unduly burdensome or duplicative.

Lastly, Chugh LLP shall provide a privilege log for any documents withheld based on a claim of privilege. (See Code Civ. Proc., § 2031.240(c)(1).)

b. Specific Requests

1.

RFP No. 15

RFP No. 15 seeks “All CLIENT engagement agreements or retainer agreements used by CHUGH, LLP during PLAINTIFF’s employment.” Chugh LLP agreed to produce one such agreement, pertaining to client Merlin Sight. Alcauter has not demonstrated good cause for “all” client engagement agreements. However, Alcauter is entitled to information on client relationships which Chugh LLP contends were interfered with. Thus, the request is limited to engagement agreements with clients that Chugh LLP contends were interfered with due to Alcauter’s actions.

2.

RFP No. 33

RFP No. 33 seeks “All DOCUMENTS showing CLIENT billing, accounts receivable, and payment records for all CLIENTS from

January 2023 through present, sufficient to prove damages alleged in YOUR cross complaint against CROSS DEFENDANT.” The cross-complaint repeatedly alleges damage to client relations. (See Cross-Compl. ¶¶ 8, 11, 13, 17, 42, 48, 54.)

Alcauter is entitled to investigate these claimed damages. However, not “all” billing/payment records are relevant for this purpose. Therefore, the request is limited to documents showing the total dollar amount for clients that Chugh LLP contends were interfered with due to Alcauter’s actions.

In sum, the motion is GRANTED as to RFP Nos. 3-5, 15, 28, 30, and 32-34, subject to the conditions set forth above.

II.

Requests for Admission (CRS# 2727)

The Code requires the responding party to admit, deny, or claim lack of knowledge in response to each request for admission. (Code Civ. Proc., § 2033.220(b).) If the responding party claims lack of knowledge, “that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (Id., § 2033.220(c).)

No further response is needed to RFP No. 2 because Chugh LLP’s response was an unqualified denial.

However, in response to the remaining RFAs at issue, Chugh LLP either denied with the qualification that its investigation is ongoing, or denied because it “lacks sufficient information.” The Code does not permit a party to preemptively deny an RFA with the expectation that further investigation will support the denial, or deny based on “lacks sufficient information.” Instead, to properly claim lack of knowledge, Chugh LLP must affirm that “a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (Code Civ. Proc., § 2033.220(c).)

In sum, the motion is GRANTED as to RFA Nos. 1, 9-12, 17, 18, 24, and 25.

III.

a. FROG No. 8.1

FROG No. 8.1 asks Chugh LLP whether it attributes any loss of income to the incident. Chugh LLP objected and then provided the phrase, "Subject to and without waiving objections, Responding Party responds as follows." However, the response ends there, and no answer is actually provided. Chugh LLP admits to the error.

Therefore, the motion is GRANTED as to FROG No. 8.1.

b. FROG Nos. 8.7 and 8.8

FROG Nos. 8.7 and 8.8 ask Chugh LLP to identify and calculate its lost income to date and in the future. Chugh LLP objected that the requests seek premature information subject to expert discovery. This is a proper response, as lost income is a topic reasonably subject to further investigation before Chugh LLP can answer.

The motion is DENIED as to FROG Nos. 8.7 and 8.8.

c. FROG No. 12.2

FROG No. 12.2 asks Chugh LLP whether it interviewed anyone concerning the incident, and if so, to provide the date of the interview and the contact information for the interviewer and interviewee. Chugh LLP objected on the basis of privilege and failed to provide the specific information sought in the subparts.

Chugh LLP has not shown that the FROG demands privileged information. (See *Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 733 ["The party claiming the privilege has the burden of establishing the preliminary facts necessary to support its exercise"].) Moreover, the response is incomplete because Chugh LLP vaguely referenced "personnel and persons with knowledge" without providing the actual information required by subparts (a) through (c).

The motion is GRANTED as to FROG No.
12.2.

d. FROG No. 12.3

FROG No. 12.3 asks Chugh LLP whether it obtained witness statements, and if so, to provide the date of the statement and the contact information for the interviewer, interviewee, and each person who has a copy of the statement. Chugh LLP objected based on privilege and then provided the following nonresponse: "Aira Asencion has compiled a timeline of actions related to Plaintiff/Cross-Defendant which was produced."

Chugh LLP has not shown that the FROG demands privileged information. (See *Costco*, supra, 47 Cal.4th at p. 733 ["The party claiming the privilege has the burden of establishing the preliminary facts necessary to support its exercise"].) Moreover, the response is incomplete because Chugh LLP failed to provide the specific information required by subparts (a) through (d).

The motion is GRANTED as to FROG No.
12.3.

e. FROG No. 17.1

FROG No. 17.1 asks for the facts, witnesses, and documents supporting "each" response to an RFA that is not an unqualified admission. Subpart (a) asks Chugh LLP to "state the number of the request." This clearly requires an independent response for each RFA. However, Chugh LLP provided an omnibus response without specifying which facts, witnesses, and documents are responsive to which RFA. Therefore, the response is incomplete.

The motion is GRANTED as to FROG No.
17.1.

IV.

Special Interrogatories (CRS# 9772)

a. SROG Nos. 1-3

SROG Nos. 1-3 asks Chugh LLP to describe and provide certain information regarding the allegedly defamatory statements published by Alcauter. In response, Chugh LLP merely referenced documents by bates number without providing the specific information requested by SROG Nos. 1-3. Therefore, the responses are incomplete.

The motion is GRANTED as to SROG Nos. 1-3.

b. SROG No. 5

SROG No. 5 asks Chugh LLP to “Describe the specific monetary damage that YOU claim resulted from each allegedly defamatory statement.” Chugh LLP objected to the request as seeking premature expert information. The Court agrees.

The motion is DENIED as to SROG No. 5.

c. SROG No. 12

SROG No. 12 asks Chugh LLP to “Describe all investigations YOU conducted to determine whether the statements PLAINTIFF made were true or false, including who conducted each investigation and the results.”

Chugh LLP responded that “Responding Party's evaluation of Plaintiff's statements was based on internal knowledge and communications by management personnel. Responding Party continues to investigate whether Plaintiff's statements were repeated to third parties.”

This is nonresponsive because Chugh LLP fails to describe its investigations in the manner requested by the SROG, i.e., the identity of the investigator(s) and the results of the investigations. The fact that Chugh LLP is continuing to investigate whether Plaintiff's statements were repeated to third parties has no bearing on its ability to describe investigations into the truth or falsity of the statements. Even if investigation is ongoing, Chugh LLP must answer the SROG “to the extent possible.” (See Code Civ. Proc., § 2030.220(b).) Thus, Chugh LLP must provide the requested information regarding the investigations it has conducted to

date. Chugh LLP has not shown that the information would be privileged.

The motion is GRANTED as to SROG No.

12.

d. SROG No. 19

SROG No. 19 asks Chugh LLP to “Identify each independently wrongful act YOU contend PLAINTIFF committed in connection with alleged interference with YOUR prospective economic advantage.”

Chugh LLP responded that “Responding Party contends generally that Plaintiff’s conduct violated workplace expectations and policies.” This is nonresponsive. The SROG asked Chugh LLP to identify “each” act, not a vague category of acts. If Chugh LLP believes that Alcauter’s conduct violated workplace policies, then it clearly has specific acts in mind. Chugh LLP must identify those acts in response to the SROG.

The motion is GRANTED as to SROG No.

19.

e. SROG No. 30

SROG No. 30 asks Chugh LLP to “Describe all damages YOU claim to have suffered as a result of PLAINTIFF’s alleged breach of confidentiality or misappropriation of trade secrets, including the method of calculation for each category of damages.” Chugh LLP objected to the request as seeking premature expert information. The Court agrees.

The motion is DENIED as to SROG No.

30.

CONCLUSION

Plaintiff’s motions to compel further responses are GRANTED in part as set forth above. Defendant Chugh LLP shall provide further responses within 20 days of today. The Court sanctions Chugh LLP and its counsel, jointly and severally, in the amount of \$2,500, to be paid within 30 days of today.